

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING**

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

**RESPONDENTS' OPPOSED MOTION FOR LEAVE TO INCLUDE SUPPLEMENTAL
RECORDS REGARDING DECAL FEES**

Respondent, The Board of Trustees of the Galveston Wharves, files this its Opposed Motion for Leave to Include Supplemental Records Regarding Decal Fees and would show this Honorable Judge the following:

1. In its Order on Initial Decision on Remand, dated April 16, 2021, the Commission held that:

The ALJ may also consider whether and how to pro-rate June 2011 and the extent to which decal fees affect the reparations calculation – while taxis and limousines did not pay per-trip or per-space access fees under the tariffs, they did pay decal fees.

(Order on Initial Decision on Remand at 40).

2. In this Honorable Judge's Remand Reconsideration Scheduling Order dated August 30, 2020 the parties were instructed as follows:

The parties should also ensure that their briefs address "the extent to which decal fees affect the reparations calculation." No additional discovery will be permitted.

(Remand Reconsideration Scheduling Order at 2).

3. During discovery between the parties, Respondent produced to the Complainant data detailing all fees charged for access to the terminals from January 1, 2011, through July 2014. This data included all decal fees charged to companies accessing Respondent's cruise terminals.

BOT_008617 – 008621 - Historical Balance, Access Fees 2011 (Ex. 1)
 BOT_009370 - 009374 - Historical Balance, Access Fees 2012 (Ex. 2)
 BOT_010134 - 010138 - Historical Balance, Access Fees 2013 (Ex. 3)
 BOT_010607 – 010612 - Historical Balance, Access Fees 2014 (Ex. 4)

True and correct copies of these documents are attached hereto as Exhibits 1-4. These documents were produced to Complainants during this proceeding in Respondents Responses to First Requests for Production dated September 8, 2014. Access fees for decals are listed in these records as

Account: 9045-380-990-528

Description: SECURITY COST RECOVERY-C/T-PERMITS & FEE

4. The Appendices submitted by Complainants failed to reflect the complete dataset of information regarding decal fees charged even though this information was exchanged and is otherwise a portion of the records of this proceeding.

Galveston Wharves Historical Detailed Trial Balance, Access Fees (2011).....44
 Galveston Wharves Historical Detailed Trial Balance, Access Fees (2012).....47
 Galveston Wharves Historical Detailed Trial Balance, Access Fees (2013).....50
 Galveston Wharves Historical Detailed Trial Balance, Access Fees (2014).....54

(Complainants Appendix at 2). Each of these documents cut off data relating to the decal fees leaving the data incomplete even though Complainants were given the full record.

5. In order to properly consider *"the extent to which decal fees affect the reparations calculation,"* this Court needs to be able to review the actual numbers from the records already exchanged between the parties. These documents do not constitute "new discovery."
6. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2011 was as follows:

2011	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/27/2011	Galveston Vehicle Escorts	\$120.00
2/2/2011	NIKKOS TRANSPORTATION	\$310.00
2/10/2011	ATLAS LIMO K.CLAYPOOL	\$70.00
2/10/2011	GREATER HOUSTON TRANS	\$395.00
2/10/2011	GREATER HOUSTON TRANS	\$115.00
2/11/2011	HARBOR EXPRESS SVS INC	\$280.00
2/11/2011	KARR LIMOUSINE SVS INC	\$190.00
2/28/2011	BLACK TIE LIMOUSINE	\$50.00
2/28/2011	CARLITOS TOWN CAR SERVI	\$50.00
3/28/2011	HOUSTON EXECUTIVE LIMO	\$150.00
4/11/2011	HOUSTON LIMO SERV	\$390.00

4/14/2011	AMERICAN TRANSPORTAION	\$80.00
4/15/2011	81ST DOLPHIN	\$80.00
4/15/2011	ENTERPRISE PKNG SERVICE	\$260.00
4/15/2011	C&S EXECUTIVE TRANSPOR	\$130.00
4/19/2011	AJ LIMO	\$110.00
4/26/2011	NIKKOS TRANSPORTATION	\$10.00
5/2/2011	ELITE LIMO	\$350.00
5/6/2011	TEXAS LIMO	\$150.00
5/11/2011	ACTION LIMO	\$150.00
5/11/2011	ACTION LIMO	\$250.00
5/19/2011	GALVESTON VEHICLE ESCO	\$10.00
6/2/2011	SAMS LIMOUSINE	\$170.00
6/3/2011	HORIZON COACH LIMOS	\$20.00
6/28/2011	MIKES LUXURY TRANSPORT	\$70.00
7/29/2011	ACTION LIMO	\$20.00
	Totals	\$3,890.00

CR/R 078 (BOT 008617 – BOT 0008621).

7. The permit/decals fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2012 was as follows:

2012	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/9/2012	GALVESTON VEHICLE ESCO	\$140.00
1/18/2012	GALVESTON LIMO	\$230.00
1/27/2012	MIKES LUXURY TRANSPORT	\$70.00
1/31/2012	A AMBASSADOR LIMO	\$620.00
2/1/2012	HARBOR EXPRESS SVCS	\$100.00
2/8/2012	81ST DOLPHIN	\$80.00
3/6/2012	GALVESTON VEHICLE ESCO	\$10.00
3/6/2012	FRANKS LIMO SEDAN	\$150.00
3/8/2012	A AMBASSADOR LIMO	\$30.00
3/9/2012	AMERICAN TRANSPORT	\$70.00
3/12/2012	HOUSTON EXECUTIVE LIMO	\$150.00
3/19/2012	BLACKHORSE LIMO	\$320.00
3/19/2012	CYPRESS TOWNCAR	\$350.00
3/21/2012	ONYX LIMO	\$300.00
3/21/2012	ULTIMATE LIMO	\$290.00
3/23/2012	ONYX LIMO SVCS	\$10.00
3/23/2012	CAREY OF HOUSTON	\$200.00
3/23/2012	EMERALD LIMO	\$310.00
3/28/2012	HOUSTON LIMO	\$280.00
3/28/2012	C&S EXECUTIVES	\$120.00
3/28/2012	REPUBLIC LIMO	\$60.00
4/3/2012	CHEAP TOWN CAR AND LIMO	\$300.00
4/5/2012	24 HOUR KATY	\$290.00
4/5/2012	SHOA ZURI	\$280.00
4/5/2012	AA CORP TRANSPORTATION	\$270.00
4/9/2012	PRIDE LIMO	\$310.00
4/9/2012	AFC CORP TRANSPORTATIO	\$600.00
4/12/2012	AJ LIMO	\$10.00
4/14/2012	A AFFORDABLE SERVICES	\$310.00
4/16/2012	KNIGHT TRANSPORT	\$120.00
4/16/2012	TEXAS LIMO	\$150.00
4/17/2012	AJ LIMOUSINE	\$90.00
4/20/2012	dunic limo	\$280.00
4/25/2012	EE LIMOS	\$280.00
4/30/2012	CTI TRANSPORTATION	\$330.00
	Totals	\$7,510.00

CR/R 79 (BOT 009370 – BOT 009374).

8. The permit/decals fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2013 was as follows:

2013	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/10/2013	AJ LIMO	\$90.00
1/11/2013	KARR LIMO SVCS	\$240.00
1/11/2013	DUNIC LIMO	\$70.00
1/23/2013	BLACKHORSE LIMO AND CH	\$140.00
1/30/2013	CTI TRANSPORTATION	\$110.00
1/31/2013	S. HOUSTON LIMO, TC, & SU	\$260.00
1/31/2013	ACTION LIMO	\$250.00
1/31/2013	ACTION LIMO	\$250.00
2/3/2013	HOUSTON EXECUTIVE LIMO	\$150.00
2/3/2013	GALVESTON LIMO	\$170.00
2/4/2013	CAREY OF HOUSTON	\$200.00
2/14/2013	PRIDE LIMO	\$10.00
2/14/2013	SAM'S LIMO	\$190.00
2/14/2013	CYPRESS TOWNCAR	\$180.00
3/5/2013	LONESTAR LIMO	\$80.00
3/6/2013	C&S EXECUTIVE	\$130.00
3/6/2013	LUXIMO LIMO	\$260.00
3/25/2013	EMERALD LIMO	\$110.00
3/26/2013	KRYSTALIA LIMO	\$90.00
4/16/2013	LIMO & TOWN CAR SERVICE	\$310.00
4/23/2013	LONE STAR LIMO	\$10.00
5/19/2013	TOTALLY TX LIMO	\$140.00
5/23/2013	ROYAL LIMO & TOWN CAR	\$320.00
7/5/2013	ACTION LIMO	\$30.00
7/18/2013	KARR LIMO	\$20.00
8/5/2013	LIMO & TOWNCAR SRV	\$310
9/26/2013	81ST DOLPHIN S.ROBLEDO	\$80.00
	Totals	\$4200.00

CR/R 80 (BOT 010134 – BOT 010138).

9. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2014 was as follows:

2014	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/8/2014	81ST DOLPHIN	\$105.00
1/14/2014	Karr Limo	\$305.00
1/16/2014	Totally Texas Limo Service	\$175.00
1/16/2014	Royal Limo & Town Car	\$135.00
1/16/2014	Knight Transport	\$145.00
1/22/2014	American Transport Co	\$135.00
1/23/2014	HOUSTON EXECUTIVE LIMOS	\$185.00
1/31/2014	Galveston Limo/A Limo Service	\$185.00
2/19/2014	CYPRESS TOWN CAR & LIMO	\$135.00
3/6/2014	HOUSTON CITY LIMO AIM CHART	\$125.00
3/19/2014	CTI TRANSPORTATION LLC	\$165.00
4/16/2014	REPUBLIC LIMOUSINE	\$95.00
4/16/2014	BLACKHORSE LIMO	\$205.00
5/1/2014	C&S EXECUTIVE TRANSPORTAT	\$295.00
5/28/2014	AVANTI TRANSPORTATION	\$395.00
6/6/2014	TRANSGATE LIMO	\$360.00
6/6/2014	24 HR KATY LIMO	\$105.00
6/18/2014	CHERRY LIMO TRANSPORTATIO	\$115.00
7/9/2014	S HOUSTON LIMO & TOWN CAR	\$60.00
7/18/2014	ONYX LIMO SERV	\$115.00
7/22/2014	ACTION LIMO	\$545.00
7/24/2014	GURU RAMDASS	\$90.00
7/30/2014	Z LIMO SERV INC	\$390.00
7/30/2014	GULF COAST LIMO SERV	\$150.00
7/30/2014	Z LIMO SERV INC	\$390.00
7/30/2014	GULF COAST LIMO SERV	\$150.00
7/30/2014	PRIDE LIMO SERV	\$120.00
7/31/2014	MERLO'S LIMOUSINES	\$100.00
	Totals	\$ 5,475.00

CR/R 081 (BOT 010607 – BOT 10612).

10. These documents do not constitute “new discovery” as they were proffered by Respondent over 8 years ago in this proceeding. They do not and cannot constitute a surprise to Complainant as she used incomplete portions of these documents referencing the decal fees in her Appendix filed in this proceeding.
11. 46 CFR § 502.216 provides that a motion to supplement the record, pursuant to 46 CFR 502.69, should be filed if submission of evidence is desired after the parties' presentation in a proceeding, but before issuance of an initial decision. (46 CFR § 502.216). At this stage of the remand, an initial decision has not been made as to the reparations question that is the subject of this remand. Respondent respectfully requests the ability to supplement the record with documents that were previously provided in discovery and to which a portion of the documents has already been made a part of the record. The supplementation of the documentation attached will allow for a complete copy of the

previously submitted documents, is not being brought in an effort to delay, and good cause exists to allow for the supplementation of these documents into the record. Good cause has been found to supplement the record when making damages determination. *Hangzhou Qianwang Dress Co., LTD., v. RDD Freight International Inc.*, Docket No. 17-02, Initial Decision (August 29, 2018).

12. Good cause exists to include the new documents in the record as they are highly relevant to the specific damage calculations currently at issue. Absent these records, the parties and the Court would need to attempt to extrapolate the fees charged from the partial records included in the Appendix. The actual data tendered to Complainants in this proceeding in 2014 avoids the necessity of guessing at the data.
13. Respondents respectfully request that it be allowed to proffer the attached Exhibits 1-4 as part of its Supplemental Record for this phase of this proceeding.

Respectfully submitted,

McLeod, Alexander, Powel & Appfel, P.C.

By: 

Anthony P. Brown
Texas State Bar No. 03091300
Tex. S.D. Id No. 7185
P. O. Box 629
Galveston, Texas 77553
Phone: 409-763-2481
Fax: 409-762-1155
apbrown@mapalaw.com

ATTORNEYS FOR THE BOARD OF TRUSTEES OF
THE GALVESTON WHARVES

CERTIFICATE OF CONFERENCE

I hereby certify that pursuant to 49 CFR § 502.71(a), on 28th day of October, 2022, I conferred with counsel for complainant 81st Dolphin regarding this motion and they stated they were opposed.



ANTHONY P. BROWN

CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this 31st day of October, 2022, and that a true and correct copy of the foregoing was served on all counsel of record, as indicated below:

Douglas T. Gilman
Brent J. Allison
GILMAN * ALLISON LLP
2005 Cullen Blvd.
Pearland, Texas 77581

Via email: dgilman@gilmanallison.com

Via email: ballison@gilmanallison.com

ATTORNEYS FOR COMPLAINANTS



ANTHONY P. BROWN